

# CRIMINAL LAW I: PROSPECTIVITY & ASSIGNED CASES

*Comprehensive Case Digest Collection Formatted in ALAC Structure  
(Answer — Legal Basis — Application — Conclusion & Doctrine)*

## CASE 1: People of the Philippines v. Marivic Genosa

*Citation: G.R. No. 135981, September 29, 2000 & January 15, 2004 | Ponente: Panganiban, J.*

**FACTS:** Marivic Genosa, after enduring years of severe physical abuse from her husband Ben Genosa, was violently attacked while 8 months pregnant. After Ben fell asleep, Marivic loaded a gun and shot him fatally in the head. She invoked Battered Woman Syndrome (BWS) as complete self-defense.

**ISSUE:** *Can Battered Woman Syndrome (BWS) constitute complete self-defense under Article 11(1) of the RPC when the husband was killed while asleep?*

■ **[A] ANSWER:** NO to complete self-defense under the RPC, but YES to recognition of BWS as producing mitigating circumstances.

■ **[L] LEGAL BASIS:** Article 11, Par. 1 (Self-Defense Requisites), Article 13, Pars. 6 & 9 (Mitigating Circumstances of Passion/Obfuscation and Diminished Will-Power), RPC; Subsequent R.A. 9262 Section 26.

■ **[A] APPLICATION:** Complete self-defense under Art. 11 RPC requires imminent or actual unlawful aggression. When Marivic shot her husband, he was asleep; hence, unlawful aggression had ceased at the exact moment of the fatal shot. However, the severe trauma of BWS produced two mitigating circumstances: diminished will-power (Art. 13[9]) and passion/obfuscation (Art. 13[6]), reducing her penalty.

■ **[C] CONCLUSION & DOCTRINE:** Death penalty REDUCED to indeterminate sentence of 6 yrs 1 day to 14 yrs 8 mos. DOCTRINE: BWS is judicially recognized in the Philippines; while incomplete under the RPC due to lack of immediate aggression during sleep, it led to the enactment of RA 9262 Sec. 26 which now completely exonerates battered women.

## CASE 2: De Joya v. Jail Warden of Batangas City

*Citation: G.R. Nos. 159418-19, December 10, 2003 | 418 SCRA 265 | Ponente: Ynares-Santiago, J.*

**FACTS:** Antonio De Joya was charged with graft under RA 3019. An arrest warrant was issued. Without surrendering or submitting to arrest, De Joya filed a motion through counsel to quash the warrant for lack of probable cause.

**ISSUE:** *Can an accused who is at large seek affirmative judicial relief before the court acquires jurisdiction over his person?*

■ **[A] ANSWER:** NO. Jurisdiction over the person of the accused is required before he can seek affirmative relief from the court.

■ **[L] LEGAL BASIS:** Rules of Court, Rule 113 & 117; Constitutional Principle on Jurisdiction over the Person of the Accused.

■ **[A] APPLICATION:** In criminal cases, jurisdiction over the person of the accused is acquired only by arrest or voluntary surrender. One who refuses to submit to the custody of the law has no standing to invoke the court's jurisdiction to seek affirmative relief such as quashing an arrest warrant.

■ **[C] CONCLUSION & DOCTRINE:** Petition DISMISSED. DOCTRINE: Custody of the law is an indispensable prerequisite before an accused at large can seek affirmative judicial remedies.

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### CASE 3: People of the Philippines v. Gregorio Santiago

*Citation: 43 Phil. 120 (1922) | Ponente: Romualdez, J.*

**FACTS:** Santiago was prosecuted for homicide through reckless imprudence. The Information was brought in the name of the 'People of the Philippine Islands'. He challenged the information, arguing the prosecution must be brought in the name of the 'United States of America'.

**ISSUE:** *Does the Government have the sovereign authority to define crimes and prosecute offenders in the name of the 'People of the Philippines'?*

■ **[A] ANSWER:** YES. Criminal actions are properly brought in the name of the sovereign people injured by the breach of public order.

■ **[L] LEGAL BASIS:** Inherent Police Power of the State; Concept of State Sovereignty in Criminal Jurisprudence.

■ **[A] APPLICATION:** Crimes are public offenses committed against the peace, order, and society of the State. The right to define and punish crimes is an inherent attribute of territorial sovereignty delegated to the Philippine legislature. Offenses are properly prosecuted in the name of the People who suffer the injury.

■ **[C] CONCLUSION & DOCTRINE:** Conviction UPHELD. DOCTRINE: Criminal prosecutions are brought in the name of the sovereign people because crimes are transgressions against public order.

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### CASE 4: United States v. Marcelo Pablo

*Citation: 35 Phil. 94 (1916) | Ponente: Torres, J.*

**FACTS:** Pablo was charged with Perjury under Act No. 1697. During trial, Act No. 2657 (Administrative Code) repealed Act No. 1697, reviving the provisions on false testimony under the Penal Code which imposed a lighter penalty.

**ISSUE:** *Can an accused be sentenced under a repealed penal statute when the subsequent law provides a lighter penalty or more favorable standard?*

■ **[A] ANSWER:** NO. Favorable subsequent penal laws apply retroactively to pending prosecutions.

■ **[L] LEGAL BASIS:** Article 22 of the Revised Penal Code (and its Spanish Penal Code predecessor); Rule on Retroactivity of Favorable Penal Laws.

■ **[A] APPLICATION:** When a penal statute is repealed without a saving clause and a subsequent law reduces the penalty or provides a more lenient standard, courts must apply the favorable new law retroactively.

■ **[C] CONCLUSION & DOCTRINE:** Favorable lighter penalty APPLIED. DOCTRINE: Favorable subsequent penal laws apply retroactively to pending prosecutions to benefit the accused.

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### CASE 5: In Re: Kay Villegas Kami, Inc.

*Citation: 35 SCRA 429 (1970) | Ponente: Makasiar, J.*

**FACTS:** A civic corporation challenged Section 12 of RA 6132, which banned organizations from funding or supporting Con-Con candidates, claiming it was an unconstitutional ex post facto law and bill of attainder.

**ISSUE:** Does Section 12 of RA 6132 constitute an ex post facto law or a bill of attainder?

■ **[A] ANSWER:** NO. Section 12 of RA 6132 is purely prospective and constitutional.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; Calder v. Bull Six-fold Ex Post Facto Test.

■ **[A] APPLICATION:** Section 12 penalizes only acts committed during the election period after the law became effective. It does not punish past conduct. It does not inflict punishment without a judicial trial, so it is not a bill of attainder.

■ **[C] CONCLUSION & DOCTRINE:** Petition DISMISSED. DOCTRINE: Ex post facto prohibition applies only to retroactive penal laws; bills of attainder require legislative punishment without trial.

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### CASE 6: People of the Philippines v. Benjamin Villaraza

*Citation: 81 SCRA 95 (1978) | Ponente: Aquino, J.*

**FACTS:** Villaraza issued a bouncing check in 1974. In 1975, PD 818 was promulgated, substantially increasing penalties for bouncing checks to reclusion perpetua. The trial court dismissed the case, claiming lack of jurisdiction under the higher penalty of PD 818.

**ISSUE:** Can PD 818 (increasing penalties) be applied retroactively to a bouncing check issued in 1974 prior to its promulgation?

■ **[A] ANSWER:** NO. Penal laws increasing penalties are strictly prospective; applying PD 818 retroactively

is an unconstitutional ex post facto law.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; Article 22, Revised Penal Code (Non-retroactivity of unfavorable laws).

■ **[A] APPLICATION:** PD 818 increased the penalty for bouncing checks. Under Art. 22 RPC, unfavorable penal laws cannot apply retroactively. The offense is governed by the original lower penalty under Art. 315 RPC in force in 1974, over which the City Court had proper jurisdiction.

■ **[C] CONCLUSION & DOCTRINE:** Dismissal SET ASIDE; case REMANDED for trial under the 1974 penalty. DOCTRINE: Penal laws increasing penalties operate prospectively and cannot be applied retroactively without violating the ex post facto clause.

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## CASE 7: United States v. Bartolome Diaz Conde and Apolinaria R. De Conde

*Citation: 42 Phil. 766 (1922) | Ponente: Johnson, J.*

**FACTS:** In 1915, defendants executed a loan contract charging 50% interest, which was completely lawful at the time. In 1916, the Usury Law (Act No. 2655) took effect, criminalizing interest above 14%. Defendants were charged and convicted under Act 2655.

**ISSUE:** *Can the Usury Law be applied retroactively to punish a loan contract validly executed before the passage of the law?*

■ **[A] ANSWER:** NO. A statute cannot retroactively penalize an act that was innocent when done; the accused are ACQUITTED.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution (Ex Post Facto Clause); Non-Impairment of Contracts Clause.

■ **[A] APPLICATION:** When the contract was made in 1915, it was lawful. Applying Act 2655 retroactively to punish that contract makes the law an ex post facto enactment that punishes an act innocent when done.

■ **[C] CONCLUSION & DOCTRINE:** Conviction REVERSED; Defendants ACQUITTED. DOCTRINE: An act innocent when done cannot be made criminal by a subsequent statute.

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## CASE 8: People of the Philippines v. Antonio Derilo, et al.

*Citation: G.R. No. 117818, April 18, 1997 | 271 SCRA 633 | Ponente: Regalado, J.*

**FACTS:** Derilo committed Murder in 1982. The 1987 Constitution abolished the death penalty. In 1993, RA 7659 reimposed the death penalty. The trial court convicted Derilo in 1994 and sentenced him to DEATH under RA 7659.

**ISSUE:** *Can RA 7659 (reimposing the death penalty) be applied retroactively to a murder committed in 1982?*

■ **[A] ANSWER:** NO. RA 7659 cannot apply retroactively; sentence is reduced from Death to Reclusion Perpetua.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; Article 22 of the Revised Penal Code.

■ **[A] APPLICATION:** When the 1987 Constitution abolished the death penalty, the maximum penalty for murder became reclusion perpetua. Applying RA 7659 retroactively to a 1982 crime would inflict capital punishment (a greater penalty), violating the ex post facto prohibition.

■ **[C] CONCLUSION & DOCTRINE:** Death penalty REDUCED to Reclusion Perpetua. DOCTRINE: Reimposed heavier penalties cannot be applied retroactively to crimes committed prior to effectivity.

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## CASE 9: People of the Philippines v. Hon. Simeon Ferrer / Co / Tayag

*Citation: 48 SCRA 382 (1972) | Ponente: Castro, J.*

**FACTS:** Feliciano Co and Nilo Tayag were charged under the Anti-Subversion Act (RA 1700). The trial judge quashed the informations, holding RA 1700 was an unconstitutional bill of attainder and ex post facto law.

**ISSUE:** *Is Republic Act No. 1700 an unconstitutional bill of attainder or an ex post facto law?*

■ **[A] ANSWER:** NO. RA 1700 is constitutional and operates prospectively.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; Requisites of Bill of Attainder and Ex Post Facto Laws.

■ **[A] APPLICATION:** RA 1700 did not punish past membership; it provided a 30-day grace period for members to surrender without penalty and punished only continued or new membership thereafter. It is not a bill of attainder because conviction requires full judicial trial proving specific intent to overthrow the government by force.

■ **[C] CONCLUSION & DOCTRINE:** Quashed SET ASIDE; Cases REMANDED for trial. DOCTRINE: A law providing a grace period to renounce membership applies prospectively; requirement of judicial trial prevents it from being a bill of attainder.

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## CASE 10: Diego Pesigan and Luz Pesigan v. Judge Domingo Angeles

*Citation: 129 SCRA 174 (1984) | Ponente: Aquino, J.*

**FACTS:** Pesigans transported carabaos on April 2, 1982. Authorities confiscated them under EO 626-A (signed in 1980, but published in the Official Gazette only on June 14, 1982, two months after the transport).

**ISSUE:** *Can an executive order carrying penal sanctions be enforced against citizens before its official publication?*

■ **[A] ANSWER:** NO. Penal executive orders cannot take effect or be enforced prior to publication; confiscation was ILLEGAL.

■ **[L] LEGAL BASIS:** Article 2, Civil Code of the Philippines; Procedural Due Process (Art. III, Sec. 1, Const.); Principle of Prospectivity.

■ **[A] APPLICATION:** Penal laws and executive orders with penal sanctions have no binding legal force until published. Because EO 626-A was unpublished on April 2, 1982, it was legally non-existent on that date. Penalizing citizens under unpublished rules violates procedural due process.

■ **[C] CONCLUSION & DOCTRINE:** Confiscation declared ILLEGAL; proceeds ordered returned. DOCTRINE: Publication is an indispensable condition precedent to the effectivity and enforceability of penal laws.

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### CASE 11: Lorenzo M. Tañada, et al. v. Hon. Juan C. Tuvera, et al.

*Citation: 136 SCRA 27 (1985) & 146 SCRA 446 (1986) | Ponente: Escolin, J. (1985) / Cruz, J. (1986)*

**FACTS:** During Martial Law, presidential decrees carrying penal sanctions were enforced without being published in the Official Gazette under the clause 'This decree shall take effect immediately'. Petitioners sought mandamus to compel publication.

**ISSUE:** *Is publication in the Official Gazette or newspaper of general circulation an indispensable requisite for the effectivity of laws and penal decrees?*

■ **[A] ANSWER:** YES. Publication is mandatory and indispensable for all laws of general application.

■ **[L] LEGAL BASIS:** Article 2, Civil Code (as amended by EO 200); Procedural Due Process Clause (Art. III, Sec. 1, Const.).

■ **[A] APPLICATION:** The clause 'unless it is otherwise provided' in Art. 2 Civil Code refers solely to the duration of the *vacatio legis*, NOT to the omission of publication. Without publication, the public has no notice of the law, and the maxim '*ignorantia legis non excusat*' becomes an injustice. Penal laws operate prospectively only after publication.

■ **[C] CONCLUSION & DOCTRINE:** Mandamus GRANTED; All unpublished laws ordered published in full. DOCTRINE: Full publication is an indispensable requirement of due process for the effectivity of all statutes and penal regulations.

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### CASE 12: Alfredo Romualdez v. Sandiganbayan

*Citation: G.R. No. 152259, July 29, 2004 | 435 SCRA 371 | Ponente: Panganiban, J.*

**FACTS:** Romualdez was charged under Section 5 of RA 3019 for intervening in government transactions as a close relative of the President. He challenged Section 5 as unconstitutionally void for vagueness.

**ISSUE:** *Is Section 5 of RA 3019 unconstitutionally vague in violation of the due process right to fair notice?*

■ **[A] ANSWER:** NO. Section 5 of RA 3019 is constitutional and gives fair notice of the prohibited conduct.

■ **[L] LEGAL BASIS:** Void-for-Vagueness Doctrine; Due Process Clause (Art. III, Sec. 1, Const.); Section 5, RA 3019.

■ **[A] APPLICATION:** A statute is void for vagueness only if men of common intelligence must guess at its meaning. Facial invalidation for vagueness is restricted to free speech cases. The term 'intervene' is easily understood by an ordinary person as meddling or using influence in government contracts.

■ **[C] CONCLUSION & DOCTRINE:** Petition DISMISSED. DOCTRINE: Ordinary penal statutes are tested as-applied; clear terms giving fair notice of prohibited conduct satisfy due process.

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### **CASE 13: SPARK, et al. v. Quezon City, Manila, and Navotas City**

*Citation: G.R. No. 225442, August 8, 2017 | 835 SCRA 350 | Ponente: Perlas-Bernabe, J.*

**FACTS:** Manila, Navotas, and QC enacted nighttime curfew ordinances for minors. Youth group SPARK challenged them for infringing upon the right to travel and violating RA 9344.

**ISSUE:** *Are the minor curfew ordinances constitutional under the Strict Scrutiny Test, and can penal sanctions be imposed on minors?*

■ **[A] ANSWER:** Manila and Navotas ordinances UNCONSTITUTIONAL (overbroad); QC ordinance UPHOLD; NO custodial penalties may be imposed on minors.

■ **[L] LEGAL BASIS:** Strict Scrutiny Test; Constitutional Right to Travel (Art. III, Sec. 6); Section 57, RA 9344 (Juvenile Justice Act).

■ **[A] APPLICATION:** While nighttime child safety is a compelling state interest, Manila and Navotas lacked adequate exceptions (overbroad). QC ordinance was narrowly tailored with exceptions for work, school, and religion. Under RA 9344, curfew violations by minors are mere status offenses; no criminal or custodial penalties can be imposed on minors.

■ **[C] CONCLUSION & DOCTRINE:** Manila/Navotas struck down; QC upheld; Custodial penalties on minors prohibited. DOCTRINE: Curfew ordinances restricting fundamental liberties must pass strict scrutiny; status offenses by minors cannot incur criminal penalties.

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